MECA

EMPLOYERS CONSULTING AGENCY

APRIL 2026

NEWSLETTER

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What the law really requires when managing underperformance during probation in Malaysia

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Misuse of confidential information, breach of duty, and conspiracy

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- HR compliance mistakes to avoid
- Probation, confidentiality, & unions



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MONTHLY ROUNDUP

Employer's Insight





This month, employers are closely monitoring heightened geopolitical tensions involving the United States and Iran, together with the broader uncertainty such developments may create across global markets. While not a direct employment issue, international conflict can have immediate workplace consequences through supply chain disruption, travel risks, rising operational costs, cybersecurity concerns, and employee wellbeing.

Many organisations are now reassessing business continuity plans, remote working readiness,emergency communication protocols, and workforce contingency measures. For multinational employers, particular attention is being given to staff mobility, expatriate support, and cross-border operational resilience.

From an employment law and risk management standpoint, the key question is not whether a crisis occurs, but whether the organisation is prepared to respond in a manner that is:

- **Clear and timely in employee communications;**
- **Consistent with workplace safety obligations; and**
- **Fair and practical in managing attendance, travel, leave, and flexible work requests**

We are also seeing employers beginning to contemplate Work From Home (WFH) and Flexible Work Arrangements (FWA) as potential contingency measures should fuel supply disruptions worsen over the next 60 days, particularly as June approaches. While such measures may support operational continuity, employers should ensure expectations relating to productivity, confidentiality, working hours, and supervision are clearly documented and effectively communicated.

WHAT EMPLOYERS ARE GETTING WRONG (This Month)

Recurring HR and IR mistakes Malaysian employers can still avoid.



Every month brings a fresh set of recurring mistakes in industrial relations and HR compliance. Most are avoidable, yet many employers still get caught out by assumptions, outdated practices, or lack of planning. Here are the key issues employers are getting wrong this month:

01

Public Holiday Confusion – March 2026 Hari Raya Surprise

Many employers were caught off guard by the Prime Minister's announcement of an additional public holiday for Hari Raya in March 2026. Some businesses immediately asked whether they could ignore it because duty rosters had already been issued.

The answer is simple: once officially gazetted, it becomes a recognised public holiday and employers must comply accordingly.

What employers are getting wrong:
Some employers mistakenly assume that a late announcement of a public holiday can be ignored simply because work schedules have already been finalised. Others take the view that previously issued duty rosters or production plans override employees' legal entitlement to the holiday. Compounding the issue, many organisations fail to communicate promptly with employees on revised work arrangements, resulting in confusion, dissatisfaction, and unnecessary disputes.

What employers should do:
Employers should closely monitor official government announcements, particularly during festive periods when additional public holidays may be declared. Work schedules and rostering systems should be designed with sufficient flexibility to accommodate sudden changes without major disruption. In addition, organisations should have contingency plans in place for last-minute declarations so that operations, staffing, and employee communication can be managed smoothly and lawfully.
A public holiday surprise should not become an HR crisis.

02

Retrenchment Trends – Ignoring Borang PK

With rising cost pressures and restructuring activity, retrenchment discussions are increasing again. Yet many employers still overlook the submission of Borang PK to the Labour Department before carrying out layoffs.

This is not optional. It is a statutory reporting requirement where retrenchment is contemplated.

What employers are getting wrong:
Many employers still treat Borang PK as a mere administrative formality rather than an important statutory requirement linked to workforce reductions. Some only submit the form after termination notices have already been issued, which defeats the purpose of timely notification to the authorities. Others mistakenly assume that small-scale retrenchments or limited headcount reductions do not require reporting, exposing the organisation to unnecessary compliance risk.

What employers should do:
Employers should submit Borang PK promptly once retrenchment is being seriously considered, rather than waiting until termination decisions have already been implemented. Selection criteria for affected employees must be fair, objective, and properly documented to withstand scrutiny if challenged. Before proceeding with layoffs, organisations should also explore reasonable alternatives such as redeployment, reduction of overtime, temporary costsaving measures, or voluntary separation schemes.
Poor retrenchment handling creates legal risk, reputational damage, and employee distrust.

WHAT EMPLOYERS ARE GETTING WRONG (This Month) ...continued

Practical compliance reminders for Malaysian employers.



03

Maternity Leave vs Maternity Allowance – Ongoing Confusion

Many employers still mix up maternity leave entitlement with maternity allowance eligibility. These are related, but not identical concepts. Employees may be entitled to maternity leave under the law, while payment eligibility may depend on statutory conditions being met.

What employers are getting wrong:
Many employers wrongly assume that if an employee is not eligible for maternity allowance or payment, this automatically means there is no entitlement to maternity leave. Others continue relying on outdated policy language that no longer reflects current legal requirements. In some cases, claims are rejected prematurely without properly reviewing the applicable eligibility criteria, creating unnecessary disputes and potential non-compliance issues.

What employers should do:
Employers should regularly review employment contracts, handbooks, and internal policies to ensure they are aligned with current maternity protection laws. It is equally important to understand the distinction between entitlement to maternity leave and the separate conditions governing maternity allowance or payment. Payroll and HR personnel should also be properly trained to administer maternity cases accurately, consistently, and in compliance with legal requirements. ***Maternity rights should be handled with clarity, consistency, and sensitivity.***

Final Thoughts

Many HR issues do not arise because the law is unclear. They arise because employers react late, rely on assumptions, or fail to stay updated. Good IR practice is not just about solving disputes — it is about preventing them.



01
A public holiday surprise should not become an HR crisis.

02
Poor retrenchment handling creates legal risk, reputational damage, and employee distrust.

03
Maternity rights should be handled with clarity, consistency, and sensitivity.

ISSUE TO WATCH

EMPATHY: THE HUMANITY OF HUMAN RESOURCES

Why empathy, capability, and humility are becoming essential risk controls in Malaysian workplaces.





Human Resources is often the first and most direct point of contact between employer and employee. It shapes workplace culture, influences trust, and frequently determines how employees experience fairness within an organisation. When HR personnel act with competence and empathy, they can strengthen engagement, resolve concerns early, and reinforce confidence in management.

However, where HR personnel are inexperienced, indifferent, insufficiently trained, or carry themselves with a sense of superiority, the consequences can be significant. HR is a support and governance function, not a position of moral authority over employees. When personnel adopt a **"holier than thou"** attitude, simple workplace concerns can quickly turn into resentment, disengagement, and formal disputes.

To strengthen relationships and reduce Industrial Relations risk, employers should ensure HR functions are guided by empathy-conscious and competent practices:

What Employers Should Do

- **Understand employment obligations before giving advice or making decisions;**
- **Communicate with respect, humility, and neutrality, particularly in difficult matters;**
- **Handle grievances promptly and fairly, without dismissiveness, bias, or condescension;**
- **Recognise that HR exists to serve the organisation fairly, not to exercise power over employees;**
- **Apply policies with sound judgment and consistency, rather than rigidly or self-righteously.**

Recent trends, both locally and globally, highlight growing concern around ineffective HR practices:

Recent Trends (ineffective HR Practices)

- Employees challenging decisions made without proper understanding of legal or policy requirements;
- Increased complaints regarding rude, dismissive, patronising, or insensitive HR interactions;
- Mishandling of misconduct, leave, or performance matters due to lack of training or poor judgment;
- Rising attrition where employees perceive HR as arrogant, disconnected, or merely administrative.

In today's workplace, employees do not only assess company policies. They assess the people entrusted to administer them. An HR department that lacks empathy, capability, or humility can undermine trust faster than any written policy can repair it. Professionalism in HR requires knowledge, emotional intelligence, and the discipline to treat every employee with dignity.

UPCOMING MECA EVENTS

Trainings, briefings, and member sessions for employers.

A quick look at MECA's upcoming May 2026 programmes designed to keep employers informed, compliant, and prepared.

MON 04&05 May 2026

MECA PUBLIC COURSES

Employment Act 1955: The Essentials



MON 12 May 2026

MECA IR SERIES WEBINAR

When Trust Breaks: Navigating Breach of Mutual Trust & Confidence in Real Employer Scenarios



WED 13 May 2026

MECA ROUNDTABLE

Power vs Rights: Where Should Employers Draw the Line?



Why Attend

- Timely HR and IR updates
- Practical employer guidance
- Networking with industry peers

Our courses are designed to keep employers informed, compliant, and ahead. Reserve your seat today and discover practical HR and legal insights you can apply with confidence.

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MEET YOUR MECA CONSULTANT

Q&A



Sarmeithaa Apparao

Consultant, MECA

Q1 "We're selling part of our business... employees just move over to the new company, right?"

Well... that's the classic assumption and one of the fastest ways to land in an unjust dismissal claim.

Here's the reality: employees are not part of the deal. You can sell the business, restructure it, carve it out, but you cannot transfer employees like assets on a balance sheet.

Under Malaysian law, every employee has a **fundamental right to choose who they work for.** So, when ownership changes, they must be given a choice, not just informed after the fact.

The Industrial Court made this clear in ***Mohd Mazlan Mohd Yunus v Malaysian Airline System Bhd.***
The company restructured and effectively moved employees into a new entity, but the employee was **not properly notified or given a choice.** The Court held that this amounted to a **termination** by the **original employer,** even though he continued working.

That's the key point many miss. Even if nothing changes on the surface, same role, same desk, same work, the law looks at **who the employer is**. Once that changes, you are dealing with a **new employment relationship.**

If you skip notice and choice, the law treats it as a unilateral termination, exposing you to a claim under ***Section 20 of the Industrial Relations Act 1967***

So, what should you do?
Communicate clearly, explain the impact, and give employees the space to decide.

Bottom line : You can transfer a business overnight. Employees come with a choice.

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Q2 | "We knew about the misconduct... but we didn't act immediately. Can we still take action later?"

Careful. You may have just **forgiven** it without realising.

In industrial relations, there's a concept called **condonation**. In simple terms, if an employer is aware of an employee's misconduct but does nothing about it, the law may treat that silence as acceptance. And once misconduct is treated as "accepted", you generally lose the right to punish the employee for that same act later on.

This isn't just theory. In ***Chua Son Yem v Fivestar Enterprise Sdn Bhd***, the Industrial Court recognised that where an employer is aware of misconduct but fails to act, it may be taken as having condoned the behaviour, effectively **waiving the right to discipline** the employee for that particular incident.

The tricky part is that condonation often happens in very normal workplace situations. You spot an issue, but decide to monitor first. Or you think it's not serious enough to escalate. Or you tell yourself you'll deal with it later if it happens again. All reasonable, all common and legally risky.

Now, this doesn't mean you're completely powerless moving forward. If the employee **repeats** the misconduct, you can still take action, but you are **no longer punishing the original act.** You are dealing with a **pattern**. The earlier incident becomes background, not the charge itself.

That said, timing still matters. If there is a **genuine** reason for the delay, such as the need to investigate or verify facts, the **court may accept it**. But where there is no clear explanation, the **delay starts to look like acceptance.** And that is where employers lose control of their own narrative.

Because once you end up in court, the question becomes very simple and very uncomfortable: ***"If it was serious, why didn't you act when you first found out?"*** That question is often enough to weaken an otherwise strong case.

Bottom line : If it's misconduct, act on it.
Because if you let it slide today,
the law may assume you meant to.

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Q3 | "If we've conducted a Domestic Inquiry (DI), does that mean the dismissal is 'safe'?"

Short answer: no. A Domestic Inquiry helps, but it does not decide the case.

Many employers assume that once a DI finds an employee guilty, the matter is settled. In reality, the Industrial Court does not act as an appeal body over your DI. It will hear the case all over again, from scratch, and make its own independent findings on whether the misconduct actually occurred and whether it justifies dismissal.

This principle is well established. In *Yap Cheng Hong v Universal Corporate Services Sdn Bhd*, the Court made it clear that even if a Domestic Inquiry was conducted, its ***findings are not binding***. The Court will decide the case based on all the evidence presented before it.

The same position was taken in *Hong Leong Equipment Sdn Bhd v Liew Fook Chuan*, where the Court of Appeal emphasised that a DI is not determinative of whether a dismissal is with just cause or excuse. The Industrial Court will still ***reassess*** everything independently.

So, does that make a DI ***pointless?*** Not at all. In practice, a properly conducted DI is extremely ***valuable***, just not for the reason most people think.

A DI does not ***decide the outcome***, but it helps you ***build your case***. It allows you to capture evidence early, document witness accounts while memories are still fresh, and show that the employee was given a fair opportunity to respond. All of this becomes critical when the matter is later tested in court.

In fact, in *Yap Cheng Hong v Universal Corporate Services Sdn Bhd*, even ***without a DI***, the Court focused on whether the employee knew the allegations and had a fair chance to respond. That tells us something important. ***Substance matters more than form***.

Bottom line : A Domestic Inquiry is not your shield, but it is definitely your weapon.

FEATURE ARTICLE

PROBATIONERS, POOR PERFORMANCE, AND PIP: Debunked

A legal perspective on probationary employment, fairness, and the myth of mandatory PIPs.



When an employee starts a new job, the probationary period is commonly viewed as a trial phase, allowing the employer to assess the employee's suitability for the role. Although the terms "probation" and "probationer" are not expressly defined under the Employment Act 1955, Malaysian Courts have consistently recognised that a probationer is engaged on a trial basis, required to prove their fitness for the position offered.

Yet, despite this well-established judicial understanding, many employers continue to treat probationary employment as though it is no different from confirmed employment. Performance concerns are frequently managed with the same level of formality and rigidity, often accompanied by an almost automatic resort to a Performance Improvement Plan (PIP), driven by the assumption that such a process is legally required.

It is precisely this assumption that deserves closer scrutiny.

While a probationer does not have a lien over a position in the company, the law is clear that their employment cannot be terminated arbitrarily. Malaysian Courts have consistently held that, like a confirmed employee, a probationer's services may only be terminated with just cause or excuse. This principle was affirmed in ***Wong Choon Meey v Practimax Sdn Bhd [2013] 2 ILJ 501***, where the Court made it clear that probation does not remove an employee from the protection of industrial justice.

Accordingly, a probationer enjoys the same fundamental right not to be dismissed without just cause or excuse and may invoke ***Section 20 of the Industrial Relations Act 1967*** in the event of a disputed termination. That said, the standard imposed on employers during probation is not one of permanence, but one of fairness. The Courts have emphasised that probationers are entitled to a fair and genuine assessment of their suitability for confirmation.

"Accordingly, a probationer enjoys the same fundamental right not to be dismissed without just cause or excuse"

In ***Inter Pacific Development Sdn Bhd v Mat Juhari bin Hussei [1995] 2 ILR 85***. it was held to be unjust for an employer to terminate a probationer without properly considering whether they were fit for employment.

What is often overlooked, however, is that there is no legal requirement for an employer to implement a Performance Improvement Plan as a precondition to terminating a probationer or a poor performing employee.

The absence of a mandatory PIP does not absolve employers of the obligation to act fairly. Where a probationer fails to meet expectations, the burden lies on the employer to establish, on a balance of probabilities, that the employee was unsuitable for confirmation. This assessment extends beyond technical competence and includes factors such as work attitude, adaptability, temperament, and overall suitability for the role.

Guidance on what constitutes a fair probationary assessment can be found in ***Grand Banks Yachts Sdn Bhd v Komander (B) Teng Tiung Sue [2002] 1 ILR 802***.

PROBATIONERS, POOR PERFORMANCE, AND PIP: Debunked

...continued

Importantly, the Industrial Court did not prescribe any rigid or formal performance management framework. Instead, the focus was on whether the employer had conducted a genuine and reasonable evaluation throughout the probation period.

At a minimum, employers are expected to clearly communicate performance expectations at the outset, including the standards and objectives associated with the role. The probationary period should then be actively utilised through supervision and periodic performance discussions. Where shortcomings arise, these should be specifically identified and communicated to the probationer, rather than raised in vague or general term

Equally, employers are expected to engage with the probationer by providing reasonable guidance and support to address identified weaknesses. This may include feedback, coaching, training, or counselling, depending on the circumstances. What the law requires is not perfection, but a fair opportunity for the probationer to demonstrate whether improvement is achievable.



> *What the law requires is not perfection, but a fair opportunity for the probationer to demonstrate whether improvement is achievable.*

Where, despite these efforts, the probationer remains unable to meet the required standards, the employer is entitled to conclude that the employee is unsuitable for confirmation and to bring the probationary employment to an end.

The consequences of getting this wrong are also commonly misunderstood. Where an employer is found to have dismissed a probationer without just cause or excuse, reinstatement is generally not the appropriate remedy. Malaysian industrial jurisprudence recognises that probationary employment is, by nature, tentative, and reinstatement is usually unsuitable where confirmation was never established.

Instead, the usual remedy is monetary compensation in the form of backwages. Even then, such compensation is subject to a statutory cap. Pursuant to the ***Second Schedule of the Industrial Relations Act 1967***, a successful probationer is entitled to backwages capped at a maximum of twelve months, calculated based on the employee's last drawn salary from the date of dismissal.

This statutory limitation reflects the legal distinction between probationary and confirmed employment and is an important factor for employers when assessing potential exposure in disputes involving probationers.

For employers, the key takeaway is clear. Fairness during probation does not equate to formalism. While probationers are protected against arbitrary dismissal, the law does not require employers to adopt rigid or burdensome processes such as Performance Improvement Plans in every case of poor performance.

What is required is a genuine, reasonable, and well documented assessment of suitability during the probationary period. Employers who understand this distinction are better positioned to manage probation effectively, balance operational needs, and minimise unnecessary legal risk, without being constrained by processes that the law does not mandate.

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Coming Soon in May 2026...

IR SERIES WEBINAR



Astiqamah Abdullah

Sr. Consultant

When Trust Breaks: Navigating Breach of Mutual Trust & Confidence in Real Employer Scenarios

14 MAY 2026

3 PM - 4 PM

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CASE SPOTLIGHT



IEM SA v Flowbird Malaysia Sdn Bhd

Misuse of confidential information, breach of duty, and conspiracy liability in a post-employment competition dispute.

A. WHAT HAPPENED

Flowbird Malaysia, a provider of parking solutions, discovered that two of its senior personnel had been engaging with a competing Swiss company, IEM SA, while still in employment.

This was not incidental contact. The individuals had travelled overseas to meet the competitor and, during that period, shared commercially sensitive information belonging to Flowbird including pricing structures, technical specifications, and regional expansion plans.

Shortly after leaving the company, both individuals became involved in setting up IEM's presence in Malaysia and Singapore. In the months that followed, Flowbird lost business opportunities, including a contract in New Zealand and a project in Indonesia, to the same competitor.

Flowbird brought legal action against both the former employees and IEM, relying on breach of confidence, breach of fiduciary duties, and conspiracy to injure.

B. HOW THE COURTS VIEWED IT

At first instance, the High Court found in favour of Flowbird and granted broad relief. The defendants were restrained from further use of confidential information and required to return all such materials. They were also held jointly liable for damages arising from the loss of a customer contract, and additional orders were made for an account of profits and general damages.

On appeal, the Court of Appeal did not revisit the case from scratch. Instead, it applied the well-established principle that findings of fact should only be disturbed where they are clearly wrong or unsupported by evidence.

On that basis, the Court upheld the High Court's conclusions.

The Court accepted that confidential information had been disclosed while the individuals were still employed. This included commercially valuable material such as pricing, quotations, and performance data tied to customer engagements.

CASE SPOTLIGHT

IEM SA v Flowbird Malaysia Sdn Bhd

...continued

Importantly, the Court rejected the argument that the information was publicly available. It was satisfied that the competitor's access to this material arose from the actions of the former employees.

While there was no direct evidence showing precisely how the information was used, the Court was prepared to draw reasonable inferences from the surrounding circumstances. The sequence of events, coupled with the absence of alternative explanations, pointed to the information having been used to secure business.

The Court reaffirmed a practical reality: in cases of this nature, direct proof of conspiracy is rare. What matters is whether the overall picture, taken as a whole, supports a coherent and reasonable inference.

However, the Court did adjust the damages awarded. It clarified that compensation must reflect actual loss of profit, not total revenue. As a result, the damages were reduced significantly to reflect the true financial impact suffered.

C. WHY THIS MATTERS FOR EMPLOYERS

This case reinforces a point many employers underestimate:

risk does not begin when an employee leaves - it often begins while they are still inside the organisation.

The duty of fidelity and good faith continues throughout employment. It is not suspended simply because an employee is exploring opportunities elsewhere or serving out notice.

From a practical standpoint, the more instructive takeaway lies in how the Court approached evidence. Employers are not expected to prove every step of a coordinated plan. Where the facts point clearly in one direction, the Court is prepared to draw inferences - particularly where confidential information is involved.

It is also a reminder that "confidential information" is not limited to documents stamped as such. Courts will look at the substance - whether the information, in its context and combination, provides a commercial advantage.

D. MECA PERSPECTIVE

1. In practice, most exposures of this nature are not the result of a single act, but a series of small decisions made over time - informal conversations, selective sharing of information, and early alignment with a future employer.
2. By the time the issue becomes visible, the damage is often already done.
3. From an employer's standpoint, the focus should not be limited to contractual protection alone. Clear internal controls, disciplined handling of sensitive information, and early escalation of unusual behaviour remain critical.
4. Because in situations like this, the legal principles are well established.
5. What determines the outcome is how early the risk is identified and how effectively it is managed.

> *"Confidential information can expose both the disloyal employee and the recipient competitor to liability."*

APRIL EVENT RECAP

"Unions Are Rising - And Employers Can't Afford to Be Clueless About It"



Let's not sugarcoat it.

On 15th April 2026, MECA's Mini Convention at Connexion Conference & Event Centre brought together HR leaders, decision-makers, and the union-curious for a full-day deep dive into one inevitable reality: union representation is not just increasing, it's evolving.

The room? Full.

The conversations? Uncomfortable (in the best way).

The takeaway? Employers who are still "waiting to see" are already behind.

Because here's the reality no one can sidestep anymore: union representation is increasing and not in the way employers expect.

The day began innocently enough. The aroma of coffee wafting through the air, permeating the senses. Light conversations nibbling at ears, the usual professional pleasantries. But it didn't take long before the tone shifted. Once the discussions got underway, it became clear that this wasn't about unions as an abstract concept. This was about what's happening inside organisations right now! The subtle erosion of trust, the growing communication gaps, the decisions that seem minor in isolation but compound into something much harder to manage.

And that's where things got interesting.....

Because the conversation shifted, almost uncomfortably, away from "how to deal with unions" to something far more confronting:

why employees feel the need to turn to them in the first place.

At some point, the room collectively recognised a truth that doesn't make it into policy manuals:

You don't get union traction in high-trust environments by accident. And you don't avoid it with compliance alone.



> *"Somewhere in the background of all this, you could almost feel the old assumptions about unions collapsing. Not because unions are resurging, but because employers are finally realising this isn't about ideology. It's about management quality, consistency, and whether people actually believe in the systems meant to support them."*

As the day unfolded, the focus shifted again. This time towards what employers can actually do about it. Not the reactive, last-minute scrambling that tends to happen when issues escalate, but something far more deliberate. A recalibration. A different way of thinking about employee relations. One that is proactive, structured, and, frankly, a little less complacent.

APRIL EVENT RECAP...*continued*

Gallery Highlights from MECA's Mini Convention in April 2026











MECA's Takeaway?

- Unions are the response, not the disruption
- The real risk lies in employers being unprepared

There was no dramatic "aha" moment. Instead, it was a slow, creeping realisation threading through conversations, case studies, and shared experiences:

the old playbook doesn't just need updating. It needs to be fundamentally rethought.

By the time the day wound down, the questions in the room had changed.

Not if unions would become relevant.
Not even when.

But:
"Are we ready for what this actually looks like in practice?"

> *"And if this Mini Convention proved anything, it's that the employers who will come out ahead aren't the ones resisting that reality. They're the ones willing to understand it, adapt to it, and, where necessary, confront the uncomfortable parts of their own workplace dynamics."*



We appreciate your continued trust in MECA as your partner in employer advisory, legal insight, and workplace strategy. We look forward to supporting stronger, more compliant workplaces in the months ahead.

> "Good employer practice is built through clarity, care, and consistency."

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